

Multiple Choice (10 marks)

1. Which one of the following statements is false?
 - (a) Protocol 14 established the Human Rights Council
 - (b) Protocol 14 mandated a two judge formation for hearing admissibility cases
 - (c) Protocol 14 reduced the jurisdiction of the European Court of Human Rights
 - (d) Protocol 14 shortened the judicial term of office for the European Court of Human Rights
 - (e) Protocol 14 introduced a requirement for unanimous decision-making in admissibility cases
2. A defendant charged with first-degree murder shall be furnished with a list containing names and addresses of all prospective jurors
 - (a) only if the prosecutor agrees.
 - (b) immediately after being charged.
 - (c) upon request and showing of good cause.
 - (d) upon court order.
 - (e) under no circumstances.
3. The most likely contract to be classified under the Uniform Commercial Code (UCC) is a contract for
 - (a) The purchase of a commercial property building.
 - (b) A contract for hiring a live-in nanny.
 - (c) The purchase of stocks and bonds.
 - (d) Crops and timber to be severed from the property next summer.
 - (e) A common carrier delivering a new computer.
4. The _____ School of jurisprudence believes that the law is an aggregate of social traditions and customs that have developed over the centuries.
 - (a) Command
 - (b) Sociological
 - (c) Historical
 - (d) Interpretive
 - (e) Analytical

5. Which of the following quotations best describes the central thesis of difference feminism?
- (a) Men are unable to comprehend their differences from women.'
 - (b) Men and women have different conceptions of the feminist project.'
 - (c) Women look to context, whereas men appeal to neutral, abstract notions of justice.'
 - (d) 'Women and men have identical perspectives on justice.'
 - (e) 'Feminism is about eradicating differences between men and women.'

True / False (10 marks)

Answer True or False

- 6. True or False: The Analytical School posits that a custom becomes law upon receiving judicial recognition by courts.
- 7. True or False: Hart's distinction between 'being obliged' and 'having an obligation' serves to illuminate the concept of a rule in legal theory.
- 8. True or False: Prior to the United Nations Charter, the use of armed force was primarily justified only in cases of self-defense.
- 9. True or False: The UK Constitution is uncoded and is derived from multiple sources, including statutes, conventions, and legal precedents.
- 10. True or False: Standard-setting in human rights diplomacy solely focuses on enforcing binding legal standards to ensure compliance.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the implications of the Kadi judgment on the incorporation of UN Security Council resolutions within domestic law, particularly regarding the protection of human rights.
- 12. Discuss the factors that may constitute sufficient good cause or excusable neglect for a litigant seeking to file a late notice of appeal beyond the 30-day deadline, using a relevant case scenario.

End of Paper